

8. 1:30 PM CASE NUMBER: C24-00285
CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.
COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET NUMBER TWO - NOS. 43-97
RE: NOELLE ELIZABETH LUCAS
FILED BY: BELTRAN DIAZ, PABLO ROBERTO
TENTATIVE RULING:

See Line 6.

9. 1:30 PM CASE NUMBER: MSC21-01963
CASE NAME: KNIGHT VS HONDA
COMPEL DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S FURTHER RESPONSES TO REQUEST
FOR PRODUCTION OF DOCUMENTS, SET TWO
FILED BY: KNIGHT, MELANIE
TENTATIVE RULING:

Summary

Plaintiff Melanie Knight's discovery motion was continued from August 19, 2026 due to the unavailability of Hon. Benjamin T. Reyes II and the disqualification of Judge Charles Steve Treat (Ret.) The tentative ruling published for August 19, 2026 is set forth below.

Summary

Plaintiff moves to compel production of extensive categories of documents concerning safety devices that defendant Honda incorporated into its Vezel model, which was marketed and sold only in Japan. The motion is **denied**.

Background

This is a personal injury case, alleging that plaintiff was hit by a Honda while jaywalking. The claims against Honda center on the allegation that Honda's vehicle lacked safety features, such as forward collision-avoidance devices. Plaintiff has adduced in discovery that at the time the vehicle was made and sold, Honda incorporated such safety devices in a similar model it was selling in Japan. Plaintiff has also received discovery about the safety technology used on other Honda models.

The substance of this motion was already raised and ruled on by Judge Mockler in a prior motion to compel, which was denied. Plaintiff argues that it now has "new information", but it offers no convincing argument why that information overcomes the grounds for Judge Mockler's denial. Moreover, plaintiff waited over a year to file this motion.

In any event, with or without Judge Mockler's prior ruling, the Court views the present discovery sought as too burdensome and too far afield to warrant compelling discovery. Plaintiff wants to be able to prove at trial that Honda was capable of incorporating the disputed safety equipment in the model at issue, and that it understood the safety value of doing so. The point is a fair one for trial, but plaintiff has already got ample discovery responses (including the very deposition testimony it now relies on) to seek to carry that point at trial. The bulky details of the incorporation into the Japanese model vehicle will add little if any further probative value.

Honda has not requested sanctions.

Ruling

1. Plaintiff's Motion is **denied**.
2. Each party shall bear their own fees and costs for this motion.
3. Defendant shall prepare a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than five (5) days from the date of the hearing.

Law & Motion

10. 1:30 PM CASE NUMBER: C22-02180
CASE NAME: DIOGO SANTANA VS. MC BUILDERS ENTERPRISES, INC.
AMEND JUDGMENT TO ADD JASIEL PERERIA NASCIMENTO AND LT BUILDERS AS ADDITIONAL JUDGMENT DEBTORS
FILED BY: SANTANA, DIOGO
TENTATIVE RULING:

Plaintiffs and judgment creditors Diogo Santana and May da Luz Ribiero move under CCP section 187 to amend the judgment to add Jasiel Pereira Nascimento and LT Builders Enterprises, Inc. as judgment debtors. The motion was properly served on the named defendant and on the proposed added judgment debtors, none of which has filed any opposition. The motion is **granted in part and denied in part**. It is granted as to Nascimento, but denied as to LT Builders.

The authority provided to the courts by Code of Civil Procedure section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148 [198 Cal. Rptr. 457].) In doing so, the court is amending the judgment to add the real judgment debtor. (*Id.* at p. 149.) To prevail in a motion to add judgment debtors, WSI must show that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (*Relentless, supra*, 222 Cal.App.4th at pp. 815–816.)

Triyar Hospitality Management, LLC v. WSI (II)-HWP, LLC (2020) 57 Cal.App.5th 636, 641.

Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc., supra*, 217 Cal.App.4th at pp. 1108–1109.) An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is